

25STCP04700 25STCP04700

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-09-15

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Case Number: 25STCP04700 Hearing Date: September 15, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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PATRICIA STEPHENSON, et al.,

Petitioner(s),

vs.

CALIFORNIA

DEPARTMENT OF INDUSTRIAL RELATIONS, DIVISION OF LABOR STANDARDS ENFORCEMENT,

Respondent(s).

Case No.:

25STCP04700

Hearing Date:

September 16, 2026

[TENTATIVE] ORDER RE:

MOTION FOR ATTORNEY FEES

Real party Marius Denisiu ("RPI")
moves for attorney fees and costs^[1] in
the amount of \$16,885.

The motion is granted only as to
costs.

I.

Background

On December 4, 2025, petitioners
Patricia Stephenson ("Stephenson") and Executive Network Enterprises, Inc.
("ENE") (collectively, "Petitioners") filed their petition against respondent
California Department of Industrial Relations, Division of Labor Standards
Enforcement ("DLSE" or "Respondent"), naming RPI as a real party. A proof of
service filed December 18, 2025 shows Petitioners served the petition on Respondent
by electronic service on December 15, 2025. On January 16, 2026, RPI filed his
Answer to the petition.

The petition challenges the
DLSE's 2018 Order, Decision, and Award ("ODA"), alleging Petitioners were never
properly served, that DLSE mailed all notices to an incorrect address,
misidentified the employer, and failed to perform mandatory duties under Labor
Code section 98. Petitioners assert these defects deprived DLSE of jurisdiction
and violated their due process rights, rendering the ODA void. The petition
also seeks to invalidate the later 2019 superior court judgment enforcing the
ODA, alleging it too is void due to lack of service, misidentification, and
extrinsic fraud. Petitioners seek an order directing DLSE to vacate the ODA and
conduct a properly noticed hearing, or alternatively relief under Code of Civil
Procedure section 473(d) declaring the ODA and resulting judgment void.

On March 26, 2026, the Court
denied Stephenson's ^[2] ex
parte application for a temporary restraining order and order to show
cause re: preliminary injunction.

On April 30, 2026, the Court
heard Respondent's demurrer, joined by RPI, to Petitioners' petition. The Court

continued the demurrer for supplemental briefing on a single issue only: whether an alter ego finding means that Stephenson is bound by the merits determination against ENE and was obligated to appeal. The Court ordered five-page cross-briefs, due May 29, 2026.

On May 28, 2026, RPI filed his supplemental brief. On May 29, 2026, Stephenson and Respondent filed their supplemental briefs. On June 2, 2026, Stephenson filed an unauthorized 12-page response brief and request for judicial notice.

On June 9, 2026, the Court heard the demurrer and took the matter under submission. Later the same day, the Court sustained the demurrer without leave to amend.

On June 24, 2026, the Court entered Judgment of Dismissal.

On July 22, 2026, RPI filed the instant motion for attorney fees.

On August 25, 2026, the Court denied Stephenson's motion for reconsideration, clarification, stay of entry of judgment, and leave to amend.

On September 1, 2026, Stephenson filed her opposition to the instant motion. On September 8, 2026, RPI filed his reply.

II.

Discussion

RPI seeks an award of \$16,885, composed of \$16,450 in attorney fees and \$435 in costs. (Mot. at 5.) RPI claims entitlement of attorney fees under Labor Code section 98.2, subdivision (k) and Civil Code section 685.070, subdivision (a).

RPI fails to show a statutory basis for a fee award.

Labor Code section 98.2,

subdivision (k) authorizes attorney fees only in a specific type of proceeding: a judgment creditor's efforts to enforce a judgment issued in a superior court action brought under section 98.2. Section 98.2 establishes the exclusive mechanism by which a party may seek superior court review of a Labor Commissioner's order, decision, or award; namely, by filing an appeal within ten days, triggering a de novo hearing in the superior court. (Lab. Code § 98.2(a).) Subdivision (k) then provides that, after that type of proceeding has resulted in a judgment, the judgment creditor may recover attorney fees incurred in enforcing that judgment.

This case is not an appeal under Labor Code section 98.2. Petitioners did not appeal the DLSE decision within the statutory period, and no section 98.2 de novo proceeding ever occurred in this action. Rather, Petitioners filed a separate writ petition years later, seeking to collaterally attack the administrative order and subsequent judgment entered in the 2019 enforcement case. Because this action is not a section 98.2 appeal and does not involve enforcement of a judgment issued in such an appeal, section 98.2, subdivision (k) does not apply.

Nor does Civil Code section 685.070 assist RPI. Section 685.070 authorizes a judgment creditor to recover enumerated costs incurred in enforcing a judgment. This writ proceeding was not initiated to enforce any judgment; it is a collateral challenge to administrative and judicial determinations already made in the earlier enforcement action. RPI cites no authority, and the Court is aware of none, extending section 685.070 to allow recovery of attorney fees for defending against a collateral attack on a judgment.

Because neither statute reaches this type of proceeding, RPI has identified no basis for an attorney fee award.

The memorandum of costs, however, supports an award of \$435 in costs. Petitioners did not file a motion to strike or tax costs, and the time to do so has passed.

III.

Conclusion

RPI has not shown any statutory basis for an attorney fee award. The motion for fees is therefore DENIED. However,

the Court awards costs to the moving party in the amount of \$435.

Date: September 15, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The motion does not specify from which party or parties RPI seeks fees and costs. The Court presumes RPI seeks costs from both petitioners.

[2]

On March 24, 2026, Stephenson filed a Substitution of Attorney form indicating

she was no longer represented by her prior counsel and would proceed without representation. Thereafter, Stephenson represented only herself and not ENE.